



CLASSIFICATION STANDARD

SCIENTIFIC REGULATION

SCIENTIFIC AND PROFESSIONAL CATEGORY

CLASSIFICATION STANDARD

SCIENTIFIC REGULATION

SCIENTIFIC AND PROFESSIONAL CATEGORY

Issued by:

Classification, Human Resources

Information Systems and Pay Division Personnel

Policy Branch 1987

Classification Standard

Scientific Regulation Group

RECORD OF AMENDMENTS

Amendment
No.

Date

Inserted
by

Remarks

CONTENTS

	PAGE
INTRODUCTION	1
CATEGORY DEFINITION	3
GROUP DEFINITION	4
RATING SCALES	8
BENCH-MARK POSITION DESCRIPTIONS INDEX	16

INTRODUCTION

The classification standard for the Scientific Regulation Group is a point-rating plan consisting of an introduction, definition of the Scientific and Professional Category and the occupational group, rating scales and bench-mark position descriptions.

Point rating is an analytical, quantitative method of determining the relative values of jobs. Point-rating plans define characteristics or factors common to the jobs being evaluated, define degrees of each factor and allocate point values to each degree. The total value determined for each job is the sum of the point values assigned by the raters.

All methods of job evaluation require the exercise of judgment and the orderly collection and analysis of information in order that consistent judgments can be made. The point-rating method facilitates rational discussion and resolution of differences in determining the relative values of jobs.

Factors

The combined factors may not describe all aspects of jobs. They deal only with those characteristics that can be defined and distinguished and that are useful in determining the relative worth of jobs. Four factors are used in this plan.

Factor Weighting and Point Distribution

The weighting of each factor reflects its relative importance. Similarly, points are distributed to the factors or elements in an arithmetic progression.

Rating Scales

In the rating plan the following factors, factor weights and point values are used.

Factors	Factor Weights	Point Values	
		Minimum	Maximum
Skill and Knowledge	35%	35	350
Decision Making	35%	35	350
Contacts	15%	15	150
Operational Responsibility	15%	15	150

Bench-mark Positions

Bench-mark position descriptions are used to exemplify degrees of factors. Each description consists of a brief summary, a list of the principal duties and specifications describing the degree of each factor against which the position is rated. The bench-mark positions have been evaluated and the degree and point values assigned for each factor are shown in the specifications.

The rating scales identify the bench-mark position descriptions that exemplify each degree. These descriptions are an integral part of the point-rating plan and are used to ensure consistency in applying the rating scales.

Use of the Standard

There are six steps in the application of this classification standard.

1. The position description is studied to ensure understanding of the position as a whole. The relation of the position being rated to positions above and below it in the organization is also studied.
2. Allocation of the position to the category and the group is confirmed by reference to the definitions and the descriptions of inclusions and exclusions.
3. Tentative degrees of each factor in the position being rated are determined by comparison with degree definitions in the rating scales. Uniform application of degree definitions requires frequent reference to the description of factors and the notes to raters.
4. The description of the factor in each of the bench-mark positions exemplifying the degree tentatively established is compared with the description of the factor in the position being rated. Comparisons are also made with descriptions of the factor in bench-mark positions for the degrees above and below the one tentatively established.
5. The point values for all factors are added to determine the tentative total point rating.
6. The position being rated is compared as a whole with positions to which similar total point values have been assigned, as a check on the validity of the total rating.

Determination of Levels

The ultimate objective of job evaluation is the determination of the relative values of jobs in each occupational group. Jobs that fall within a designated range of point values will be regarded as of equal difficulty and will be assigned to the same level.

LEVELS AND LEVEL BOUNDARIES

1	1	-	179
2	180	-	289
3	290	-	399
4	400	-	499
5	500	-	679
6	680	-	799
7	800	-	959
8	960	-	1,000

CATEGORY DEFINITION

Occupational categories were repealed by the Public Service Reform Act (PSRA), effective April 1, 1993. Therefore, the occupational category definitions have been deleted from the classification standards.

GROUP DEFINITION

For occupational group allocation, it is recommended that you use the [Occupational Group Definition](#) and [the Occupational Sub-group Definition Maps](#), which provide the 2005 group and sub-group definition and their corresponding inclusion and exclusion statements. The maps explicitly link the relevant parts of the overall 2005 occupational sub-group definition to each classification standard.

SKILL & KNOWLEDGE FACTOR

This factor is used to measure the difficulty of the work in terms of the skill and knowledge needed to perform the duties of the position.

Notes to Raters

"Skill" refers to the ability required to perform such tasks as identifying potential health or environmental hazards or economic fraud; assessing information and observations on scientific and technical matters in relation to the objectives of the organization; planning, organizing and coordinating work; and developing and evaluating policies, regulations and standards.

"Knowledge" refers to the understanding required of such matters as scientific theories and principles, manufacturing processes and practices, legislation, regulations, directives, precedents, procedures, methods and practices associated with the work, and the administrative practices, methods and procedures of the department.

The seven degrees of the Skill and Knowledge factor have been established by the comparative ranking of the bench-mark positions. In applying the standard the degree of the element tentatively selected is to be confirmed by comparing the duties of the position being rated with the duties and specifications of bench-mark positions.

RATING SCALE - SKILL AND KNOWLEDGE FACTOR

Degree of Skill and Knowledge	Points	Bench-mark Position Descriptions	Page
1	35	Inspector	1.1
2	87	Food Inspector	2.1
3	139	Food Inspector Inspector/Supervisor	3.1 4.1
4	191	Regional Food Specialist Area Inspection Chief Operations and Compliance Officer Patent Examiner	5.1 6.1 7.1 11.1
5	243	Officer, Food Inspection Policy and Audit Chief, Food Inspection Division Senior Technological Information Officer	8.2 9.2 12.2
6	295	Chief, Program Development and Evaluation Head, Patent Examination	10.1 13.2
7	350	Chief, Patent Examination Chief, Technological Information Services	14.2 15.2

DECISION MAKING FACTOR

This factor is used to measure the difficulty and importance of the work in terms of the scope for exercise of initiative and judgment and the impact of decisions.

Definitions

"Scope for exercise of initiative and judgment" refers to the freedom to take particular courses of action. It is measured in terms of the requirement to make decisions, recommendations and proposals within the framework of program objectives, and the direction and guidance provided by statutes, regulations and by precedents.

"Decisions" refers to decisions to take particular courses of action within the authority delegated to the position, to recommendations to superiors and to line officers to follow particular courses of action and to shared decisions and recommendations in which the incumbent is an effective participant.

"Impact of decisions" refers to the importance of the decisions in terms of the resources of the organization that are committed or affected. It also refers to the importance of decisions in terms of their effect on program delivery, other government departments and agencies and the significance of precedents established.

"Established *methods*" is to be interpreted broadly to include the guidance provided by manuals and directives and by precedents.

Notes to Raters

The four degrees of the Impact of Decisions element are illustrated by the bench-mark position descriptions. The following characteristics of the work are considered in determining the tentative degree of this element:

1. The size and nature of the internal resources committed or affected by decisions.
2. The effect of decisions on program delivery and other organizations.
3. The extent to *which* the incumbent is the effective decision-making authority, which is usually related to the place of the position in the organization.
4. The consequences of an error in judgment in making a decision.

In rating positions under the Impact of Decisions element raters are to consider both the kind and the significance of the effects of action taken, the organization in which the position is located and the result of an error that is possible and not an error that is only remotely possible or an error resulting from neglect or incompetence.

Any one of these characteristics is only an indication of the Impact of Decisions element and the whole context within *which* the work is performed is to be considered. The degree of the element tentatively selected is then to be confirmed by comparing the duties of the position being rated with the duties and specifications of bench-mark positions.

The degree of the Decision Making factor tentatively selected is to be confirmed by comparing the position being rated with the descriptions of the duties and specifications of the bench-mark positions.

RATING SCALE - DECISION MAKING FACTOR

Impact of Decisions, and Degree	Scope for Exercise		of Initiative		and judgment	
	Problems are solved by the selection of a course of action indicated by established methods and instructions. The implications of decisions are usually apparent.	There is scope for initiative in organizing and scheduling work. Problems are solved within the framework of established methods and procedures. The implications of decisions may not be readily apparent.	There is scope for initiative in organizing and scheduling work, and for judgment in evaluating documents and reports submitted by persons with specialized knowledge and applying regulations and directives. Problems are solved within the framework of the objectives of the program. The implications of decisions may be difficult to determine.		There is scope for initiative in planning and coordinating work, and for judgment in evaluating reports, decisions, recommendations proposals submitted by specialist staff of the organization. Problems are solved by devising new courses of action within the intent of the objectives of the program. The implications of alternate courses of action are often difficult to determine. Proposals are made to effect changes to departmental programs.	
	A	B	C	D		
	35/	98/	161/	224/	Page	Page
1	Inspector Food Inspector	Food Inspector Inspector/ Supervisor	Regional Food Specialist Patent Examiner Senior Technological Information Officer		5.2 11.2 12.2	
2	97/	160/	223/	286/	6.2 7.2 9.2 13.2	8.2
3	159/	222/	285/	350/		10.2 14.2 15.2

RESPONSIBILITY FOR CONTACTS FACTOR

This factor is used to evaluate the purpose and importance of the contacts that occur as an integral part of the work.

Notes to Raters

Only contacts that are an integral part of the work and that result from duties assigned or sanctioned by management are considered.

If the duties require more than one degree of contact, the highest point value is assigned. Only the highest point value contact is described in the benchmark specification.

Points are assigned for written contacts only if the duties of the position being rated include responsibility for signing letters or memoranda.

RATING SCALE - CONTACTS FACTOR

Degree of Purpose of Contact	Points	Bench-mark Position Descriptions	Page
1. To obtain information and to provide explanations.	15	Inspector	1.2
2. To obtain information and cooperation and to provide explanations of the changes required.	49	Food Inspector Food Inspector Patent Examiner	2.2 3.2 11.2
3. To resolve problems associated with decisions and recommendations made by others.	83	Inspector/Supervisor Regional Food Specialist Area Inspection Chief Senior Technological Information Officer	4.2 5.2 6.2 12.2
4. To solicit the support and active participation of others in the conduct of activities that overlap jurisdictions.	117	Operations and Compliance Officer Officer, Food Inspection Policy and Audit Head, Patent Examination	7.2 8.2 13.2
5. To represent the organization with authority to seek common ground on <i>which</i> to base solutions to problems of significance.	150	Chief Food Inspection Division Chief, Program Development and Evaluation Chief, Patent Examination Chief, Technological Information Services	9.2 10.2 14.2 15.3

OPERATIONAL RESPONSIBILITY FACTOR

This factor is used to measure the responsibility that the incumbent of the position assumes for the work and guidance of other employees. The work may be accomplished through either line or staff functions.

"Staff functions" include activities such as the development and evaluation of methods, procedures, systems and policies and the provision of advice, guidance and technical assistance to field operations.

"Line functions" include assignment and distribution of work, review and evaluation of performance, allocation of resources and other activities pertaining to the administration of personnel.

RATING SCALE - OPERATIONAL RESPONSIBILITY FACTOR

Degree Definition	Degree	Points	Benchmarks	Page
Responsibility is primarily for own work. The provision of guidance to other staff may be required.	1	15	Inspector	1.2
OR			Food Inspector	2.2
			Food Inspector	3.2
			Patent Examiner	11.2
Participation in the development of operational procedures, systems or methods.			Senior Technological Information Officer	12.2
Continuing responsibility for planning and assigning work, reviewing work during performance or upon completion, evaluating performance of subordinates and providing guidance for improvement.	2	60	Inspector/Supervisor	4.2
OR			Regional Food Specialist	5.2
			Operations and Compliance Officer	7.2
			Head, Patent Examination	13.2
Continuing responsibility for the development of operational procedures, systems or methods.				
Continuing responsibility exercised through subordinate supervisors; for modifying operating procedures, allocating resources between competing needs, establishing priorities and goals.	3	105	Area Inspection Chief	6.2
OR			Officer, Food Inspection	8.2
			Policy and Audit	
			Chief, Food Inspection Division	9.2
Continuing responsibility for the development of program or operational policies administered by others and ensuring their correct interpretation and application through prescribing efficiency/effectiveness monitoring systems.				
Continuing responsibility for a large, complex organization, usually through subordinate managers; for planning, directing and controlling human resources.	4	150	Chief, Program Development and Evaluation	10.2
OR			Chief, Patent Examination	14.2
			Chief, Technological Information Services	15.3
Continuing responsibility for the development of national policies.				

Scientific Regulation

16

BENCH-MARK POSITION DESCRIPTIONS

B.M. No.	TITLE	LEVEL	S&K	DM	C	OR	TOTAL
1	Inspector	1	1	A1	1	1	100
2	Food Inspector	2	2	A1	2	1	186
3	Food Inspector	3	3	B1	2	1	301
4	Inspector/Supervisor	3	3	B1	3	2	380
5	Regional Food Specialist	4	4	C1	3	2	495
6	Area Inspection Chief	5	4	C2	3	3	602
7	Operations and Compliance Officer	5	4	C2	4	2	591
8	Officer, Food Inspection Policy and Audit	6	5	D2	4	3	751
9	Chief, Food Inspection Division	6	5	C2	5	3	721
10	Chief, Program Development and Evaluation	7	6	D3	5	4	945
11	Patent Examiner	4	4	C1	2	1	416
12	Senior Technological Information Officer	5	5	C1	3	1	502
13	Head, Patent Examination	6	6	C2	4	2	695
14	Chief, Patent Examination	8	7	D3	5	4	1,000
15	Chief, Technological Information Services	8	7	D3	5	4	1,000

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 1

Level: 1

Descriptive Title: Inspector

Point Rating: 100

Reporting to the Assistant Inspection Supervisor:

Participates with an experienced inspector in the inspection of fishing vessels, discharge and holding sites, transportation systems and fish processing establishments within an assigned geographical area to enforce Federal and Provincial legislation and regulations.

Under the guidance of experienced inspectors, performs organoleptic, physical, chemical and microbiological examinations of fish and shellfish products; surveys related literature; investigates problems in the handling, processing, packaging, storage, preservation, transportation and distribution of fish and fish products; conducts surveys (including sanitary surveys); gathers data, collects samples for laboratory analysis and analyzes results . Performs tests in the laboratory.

Explains regulations, directives and the meaning of scientific findings to the industry. Identifies the need for amendments to inspection procedures, regulations or training manuals.

Writes reports. Works cooperatively with vessel operators, processing plant management and representatives of provincial and other federal departments.

Specifications

Degree/
Points

Skill and Knowledge

1 / 35

The work requires knowledge of bacteriological and chemical analytical methods and of sanitary practices and techniques in the fishing industry. Knowledge of the Fish Inspection Act and Regulations and related legislation is required.

Decision Making

A1 / 35

The work requires the conduct of examinations, investigations and surveys within established methods and instructions. Decisions are made regarding product quality standards and routine organoleptic and physical inspections where the implications are apparent.

Decisions affect the program delivery within the geographical area served by the position. Errors could result in poor public image, poor cooperation by the regulated industry, the release of unacceptable products or the destruction of acceptable products. The work of the position is closely supervised by a supervisor at the intermediate level.

Contacts

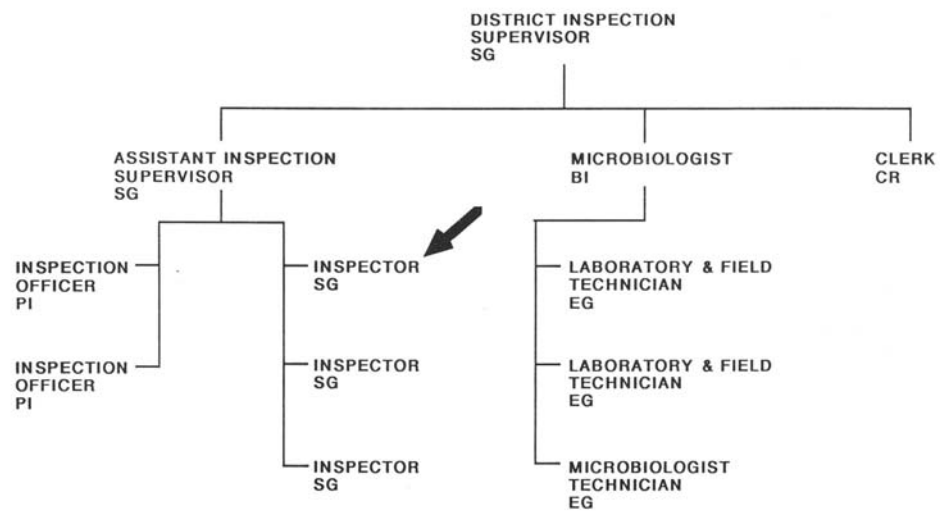
1 / 15

The work requires obtaining information from operators of fishing vessels, discharge and holding sites, transportation systems and fish processing establishments in order to schedule and undertake inspections and surveys. The work also requires giving explanations of regulations and programs.

Operational Responsibility

1 / 15

Responsibility is for own work.



FIELD SERVICES BRANCH

BM 1

1.3

Sub-group: Scientific Regulation
B.M.P.D. No. 1

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 2

Level: 2

Descriptive Title: Food Inspector

Point Rating: 186

Reporting to the Zone Supervisor:

Plans and performs inspections of less complex and complex food manufacturing and distributing plants for compliance with the requirements of the Food and Drugs Act and Regulations. Verifies the firm's raw material specifications and assesses potential hazards such as those associated with various production processes and equipment, toxicity of packaging materials, in-plant use of pesticides and cleaning agents, fungal and bacteriological contamination and chemicals used as processing aids. Evaluates quality control practices.

Investigates alleged health hazard violations reported by consumers, professional and trade associations and regulatory agencies. Researches files, reference texts and scientific publications, assesses the significance of legal documents, photographs, visual observations of conditions and practices and analytical results from regional laboratories and prepares reports and recommends enforcement action.

Explains and interprets current and proposed legislation, regulations, policies and guidelines to industry. Discusses inspection results with plant management. Describes observations on unsatisfactory conditions and stipulates requirements for correction of violations.

Writes inspection reports and assigns reinspection priorities to plants. Determines and takes enforcement action after discussion with supervisor or resource staff or immediately, depending on the circumstances. Seizes or detains stock, persuades management of firms to voluntarily destroy violative products and raw materials and negotiates the forfeiture to the Crown of seized goods. Discusses recalls with company management and monitors the effectiveness of voluntary and imposed recalls. Recommends prosecution, collects and documents evidence, briefs legal counsel and acts as a witness in court. In contentious situations, permits or refuses entry into Canada of import shipments of foods.

Recommends changes in regional and national work projects and in inspection techniques and procedures. Works cooperatively with industry representatives and colleagues of provincial and other federal departments.

Specifications Degree/
Points

Skill and Knowledge 2 / 87

The work requires knowledge of food technology including food manufacturing processes and equipment and quality control procedures, food chemistry and food microbiology.

Knowledge of the Food and Drugs Act and Regulations, related legislation and operational policies and procedures is required. The work requires the skill to carry out routine investigations and enforcement actions.

Decision Making A1 / 35

The work requires the inspection and investigation of less complex manufacturing and distributing plants according to established methods and instructions. Decisions are made regarding plant conditions and practices and their acceptability based on broad wording in regulations where the implications are generally apparent.

Decisions affect the program delivery within the geographical area served by the position. Errors could result in poor public image, poor cooperation by the regulated industry, the release of unacceptable products or the destruction of acceptable products. The position reports to a supervisor at the intermediate level.

Contacts

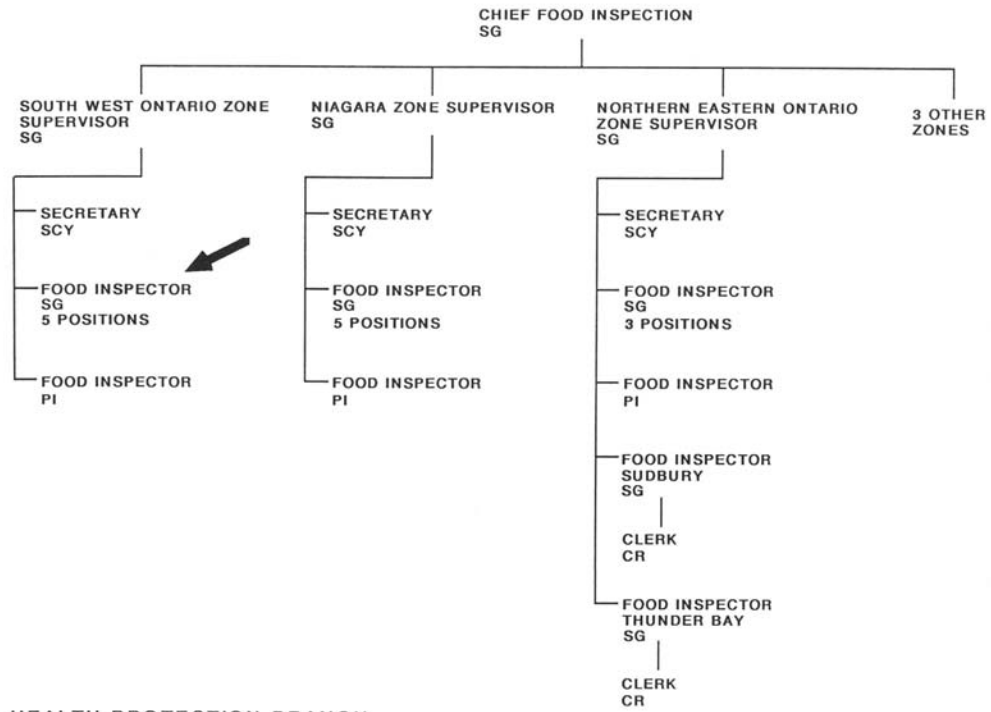
2 / 49

The work requires obtaining information and cooperation from operators of food manufacturing and distributing plants in order to achieve compliance with the requirements of the Food and Drugs Act and Regulations. The work also requires giving explanations of unsatisfactory conditions and stipulating requirements for correction of violations.

Operational Responsibility

1 / 15

Responsibility is primarily for own work although guidance to other staff may be provided.



HEALTH PROTECTION BRANCH

BM 2

2.3

Sub-group: Scientific Regulation
B.M.P.D. No. 2

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 3

Level: 3

Descriptive Title: Food Inspector

Point Rating: 301

Reporting to the Zone Supervisor:

Plans and performs inspections and evaluations of complex food manufacturing plants for compliance with the requirements of the Food and Drugs Act and Regulations.

Reviews firms' history to determine previous problem areas, verifies raw material specifications and product formulations and ensures that only permitted additives and ingredients are used. Assesses potential health hazards such as those associated with production methodology, plant and equipment suitability, the toxicity of packaging materials, in-plant use of pesticides and cleaning agents, fungal contamination and the use of chemicals as processing aids. Evaluates product recall procedures, quality control programs, sanitation procedures and employee health programs.

Investigates and resolves complex, violative or emergency problems concerning health hazards identified by consumers, trade and professional associations and regulatory agencies. Researches background and interviews plant officials and resource personnel within government. Assesses the significance of plant records, legal documents, photographs, visual observations of conditions and practices and analytical results from regional laboratories, prepares reports and takes enforcement action.

Interprets current and proposed legislation, regulations, policies and guidelines to industry, consumers and related agencies. Discusses inspection results with plant management. Negotiates voluntary remedial measures with industry officials.

Reports on inspections, investigations and enforcement actions. Determines and takes enforcement action. Supervises the forfeiture and disposal of violative products. Discusses recalls with industry management and monitors the effectiveness of recalls. Issues warnings to firms. Recommends prosecutions, collects and documents evidence, briefs legal counsel and acts as a witness in court.

Recommends changes in regional and national work projects and in inspection techniques and procedures. Liaises with the regional laboratory. Works cooperatively with industry representatives and colleagues of provincial and other federal departments.

Specifications

Degree/
Points

Skill and Knowledge

3 / 139

The work requires knowledge of food technology including complex food manufacturing processes and equipment and quality and critical process control procedures, food chemistry and food microbiology. Knowledge of the Food and Drugs Act and Regulations, related legislation, legal precedents and operational policies and procedures is required. The work requires the skill to investigate and resolve complex, violative or emergency problems concerning health hazards.

Decision Making

B1 / 98

Initiative and judgment are required to schedule own work, to liaise with laboratories, to assess production methodology, plant and equipment suitability, in-process quality control and finished product analytical procedures in complex food manufacturing plants. Problems regarding product recall procedures, quality control and employee health programs are solved within the framework of established methods and procedures. Decisions are made on complex violative or emergency problems where implications may not be readily apparent, for example, under-processing of foods.

Decisions affect the program delivery within the geographical area served by the position. Errors could result in poor public image, poor cooperation by the regulated industry, the release of unacceptable products or the destruction of acceptable products. The position reports to a supervisor at the intermediate level.

Contacts

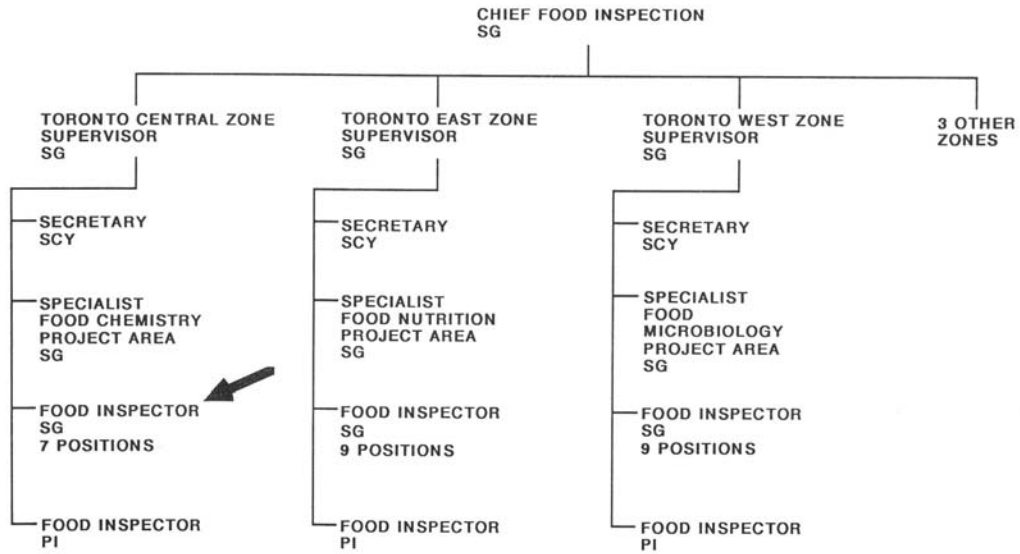
2 / 49

The work requires obtaining information and cooperation from operators of food manufacturing plants in order to achieve compliance with the requirements of the Food and Drugs Act and Regulations. The work also requires explaining the results of inspections and stipulating corrective actions required.

Operational Responsibility

1 / 15

Responsibility is primarily for own work although guidance to other staff may be provided.



HEALTH PROTECTION BRANCH

3.3

Scientific Regulation
Sub-group: Scientific Regulation
B.M.P.D., No. 3

BM 3

4.1

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 4

Level: 3

Descriptive Title: Inspector/Supervisor

Point Rating: 380

Reporting to District Inspection Supervisor:

Plans, organizes and directs the work of Fish Inspectors. Trains, advises and appraises employees. Coordinates the work of field staff with the laboratories and the services of departmental specialists to solve difficult and involved problems such as in-plant bacteriological surveys to identify and correct the causes of product contamination. Investigates and resolves performance and discipline problems. Arbitrates differences between field inspectors and industry representatives.

Inspects fishing vessels, discharge and holding sites, transportation systems and fish processing establishments to enforce Federal and Provincial legislation. Evaluates equipment, construction and processing requirements. Investigates, assesses and advises on plant efficiency, sanitation and quality problems.

Reviews and evaluates sampling schedules and reassigns priorities. Reviews survey and inspection reports to ensure quality standards are uniformly applied. Coordinates the gathering of information, baseline data and surveys. Plans, implements and monitors program audit procedures. Implements a management information system including an operational performance measurement system.

Explains and interprets to industry legislation, directives, and the significance of bacteriological, chemical and organoleptic analyses of fish products. Advises the industry on recent technological advances in fish processing, preservation, storage and distribution. Advises on labeling and packaging for domestic and imported fresh, frozen, canned, pickled, cured and other fish and shellfish products.

Recommends and directs the detention, release and/or rejection of fish and fishery products domestically produced or imported. Recommends legal action and acts as a witness.

Reviews and evaluates reports and suggestions submitted by staff pertaining to inspection activities. Proposes modifications to inspection, sampling and administrative procedures. Recommends amendments to legislation.

Writes and studies reports. Works cooperatively with vessel operators, processing plant management, importers. industry organizations and representatives of provincial and other federal departments.

Specifications

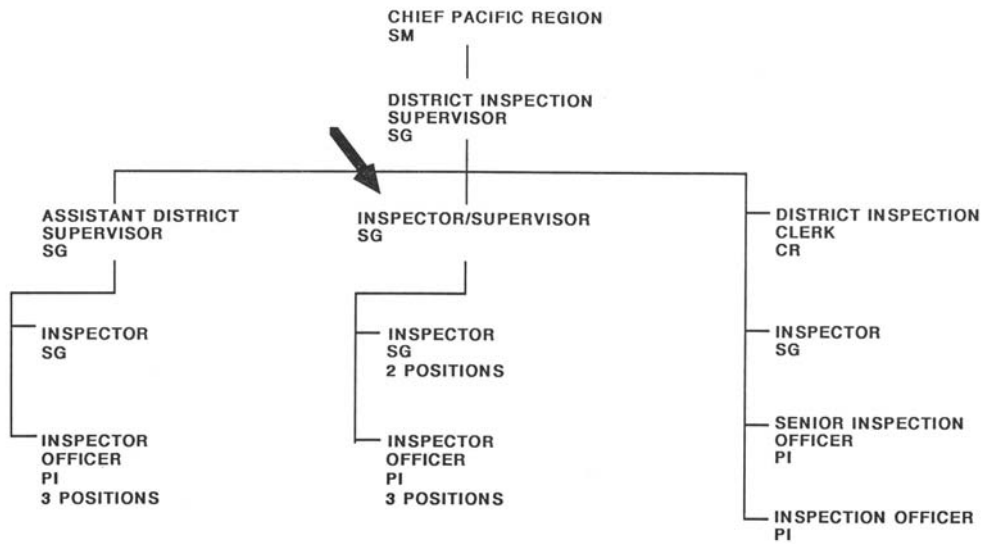
Degree/
Points

Skill and Knowledge

3 / 139

The work requires knowledge of food technology related to the fish processing industry. Knowledge of the Fish Inspection Act and Regulations, related legislation, applicable standards, legal precedents and operational and administrative policies and procedures is required. The skill to supervise the work of fish inspectors, to resolve disputes between inspectors and the industry and to investigate more complex infractions of the legislation is required.

	Degree/ Points
Decision Making	131 / 98
Initiative and judgment are required to plan, organize and supervise the work of subordinates. Problems are solved within the framework of established methods and procedures, for example, in-plant bacteriological surveys. Decisions are made regarding product compliance with standards where the implications may not be readily apparent. Decisions affect the program delivery within the geographical area served by this position and its subordinates. Errors could result in inadequate work production by staff, poor public image, poor cooperation by the regulated industry, the release of unacceptable products or the destruction of acceptable products. The position reports to a supervisor at the intermediate level.	
Contacts	3 / 83
The work requires resolving problems between field inspectors and industry representatives relating to interpretations of regulations, policies and standards.	
Operational Responsibility	2 / 60
Responsibility is for the planning and assignment of work for fish inspectors in the sub-district, review of their performance and provision of guidance for improvements.	

**FIELD SERVICES BRANCH**

4.3

Scientific Regulation
Sub-group: Scientific Regulation
B.M.P.D. No. 4

BM 4

5.1

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 5

Level: 4

Descriptive Title: Regional Food Specialist

Point Rating: 495

Reporting to the Regional Manager:

Advises the Regional staff, including Regional and District managers and inspectors, on the consistent and uniform application of the legislation, policies and procedures in a particular specialty (manufactured food). Analyzes contentious problems related to program application and technology. Identifies product problems peculiar to the Region. Recommends priorities for inspection. Recommends enforcement actions, such as seizures, prosecutions and show cause hearings.

Provides authoritative advice, interpretation, information and education relating to legislation and policy to senior officials of industry, trade associations, legal firms, other government departments and agencies, advertisers, media, consumers and consumer groups.

Monitors and reviews regional and departmental inspection reports, computerized management information reports and comments raised by industry, consumer groups or other government agencies. Identifies deficiencies or problems and arranges for corrective action. Evaluates inspection and test methodologies, technical reviews and legislative and policy issues. Recommends changes to work plans, policy and legislation.

Identifies training needs. Develops, plans and conducts training in comprehensive inspection procedures and techniques. Evaluates training programs. Accompanies inspectors on inspections and evaluates their performance. Discusses local concerns with district offices and provides updates on regional and national activities and policies.

Prepares regional analyses of the manufactured food activity. Estimates, forecasts and recommends the financial and human resources required. Designs performance indicators. Recommends short- and long-term operational and program goals in the area of specialty. Organizes the national sampling program within the region and makes recommendations to the national functional authority. Contributes to the development of the national multi-year operational plan for the region and for the national functional Branch. Evaluates technical equipment requirements and ensures the maintenance and calibration of instruments.

Specifications

Degree/
Points

Skill and Knowledge

4 / 191

The work requires knowledge of the manufactured food industry, including commodity sector trends and technological advances, particularly as they apply to the Ontario Region. Knowledge of the Food and Drugs Act, the Consumer Packaging and Labeling Act and their Regulations, related legislation, legal precedents, operational policies and procedures and training methodology is required. The work requires the skill to analyze and resolve problems of technology and program application in the region, to advise on legislation and policy related to the food fraud program and to monitor regional program delivery.

5.2

Degree/
Points

Decision Making

Cl / 161

Initiative and judgment are required to advise on the planning, organization and operation of the regional program for a particular specialty (manufactured food) and to organize the national sampling program and training in the region. Judgment is required to monitor and assess inspection methods and staff capability in the districts. Problems concerning program application, technological advancement and enforcement are solved within the objectives of the program. The implications of these decisions may be difficult to determine.

Decisions affect the program delivery in a particular specialty (manufactured food) in the region. Errors could result in an inadequate regional training and sampling program, poor public image or poor cooperation by the regulated industry. The position reports to a supervisor at the senior level.

Contacts

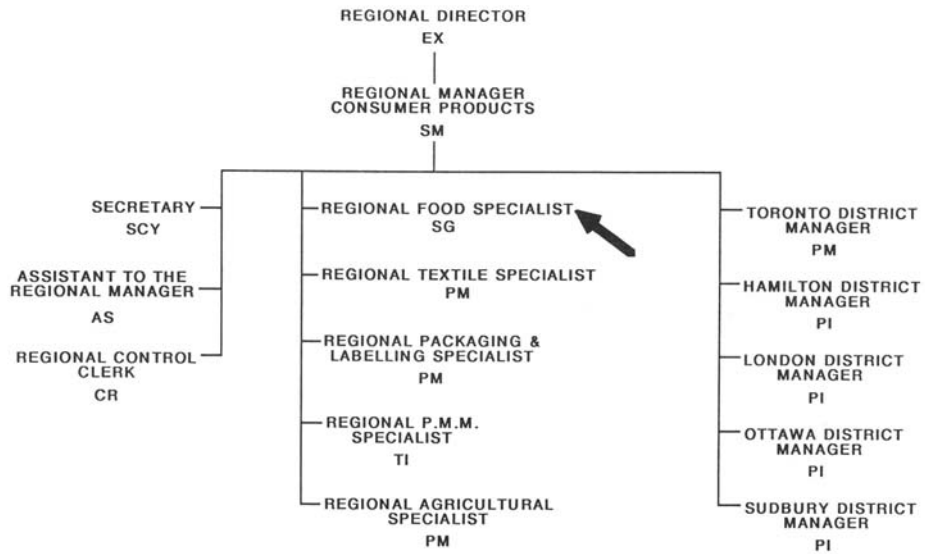
3 / 83

The work requires resolving problems related to the consistent and uniform application of the legislation, policies and procedures in a particular specialty (manufactured food) in the region.

Operational Responsibility

2 / 60

Responsibility is for the continuing development of operational procedures for inspection and enforcement to ensure the consistent and uniform application of the legislation and policies in a particular specialty in the Ontario Region.



BUREAU OF CONSUMER AFFAIRS

BM 5

5.3

Sub-group: Scientific Regulation
B.N.P.D. No. 5

6.1

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 6

Level: 5

Descriptive Title: Area Inspection Chief

Point Rating: 602

Plans, organizes and directs the fisheries inspection program in the Prince *Edward* Island area. Evaluates and monitors program activities in the area to ensure uniformity of quality standards and program delivery. Evaluates quality standards recommendations proposed by the regulated industry. Appraises efficiency of field and laboratory work. Directs corrective action. Defines area objectives and guidelines. Establishes short- and long-term operational program goals and the requirements for financial and human resources. Makes recommendations on the regional and national multi-year operational plan. Establishes the priorities for inspection, laboratory, investigative and other activities. Reallocates resources within the area and ensures the implementation of procedures for the achievement of program goals.

Manages and coordinates the work of area employees in several sub-area offices. Selects, trains, advises and appraises staff. Resolves performance and discipline problems.

Reviews surveys of fish processing establishments to ensure operating requirements are met. Approves the detention, release, seizure and/or rejection of fish and fish products originating in Prince Edward Island or imported into the area. Advises the regulated industry on processing techniques and equipment to improve plant efficiency and product quality.

Reviews the progress of investigative projects. Advises subordinate supervisors on operational and managerial functions. Plans training programs to improve the performance of area staff, for example in the application of inspection *standards*, fish grade criteria and work management. Resolves more serious differences between area supervisors and senior industry representatives.

Manages the transfer of technological advances in fish processing, preservation, storage and distribution to producers through the assignment of technical, professional and scientific specialists to resolve specific problems. Advises the regulated industry on departmental policies, programs and legislation.

Reviews and evaluates reports and suggestions from subordinates. Recommends changes to methods and procedures for inspection and laboratory analysis. Recommends amendments to legislation.

Works cooperatively with officials in own and other departments, other levels of government, foreign governments, industry organizations and importers.

Specifications

Degree/
Points

Skill and Knowledge

4 / 191

The work requires knowledge of food technology related to the fish processing industry. Knowledge of the Fish Inspection Act and Regulations, related legislation, applicable standards, legal precedents and operational and administrative policies and procedures is required. The work requires the skill to manage the Fish Inspection program in the Prince Edward Island area.

Decision Making

C2 / 223

Initiative and judgment are required to plan, organize and direct the area program. Judgment is required to evaluate and monitor program activities. Complex and sensitive problems concerning changes initiated by technological development are solved within the objectives of the program. The implications of decisions on inspection and operational program goals may be difficult to determine. Short- and long-term program goals are established and recommendations on the national multi-year operational plan are made.

Decisions affect the area program, the industry, consumers and other government departments. Errors could result in poor public image, poor cooperation by the regulated industry, poor international cooperation or inappropriate commitment of financial and human resources. The position reports to a supervisor at the senior level.

Contacts

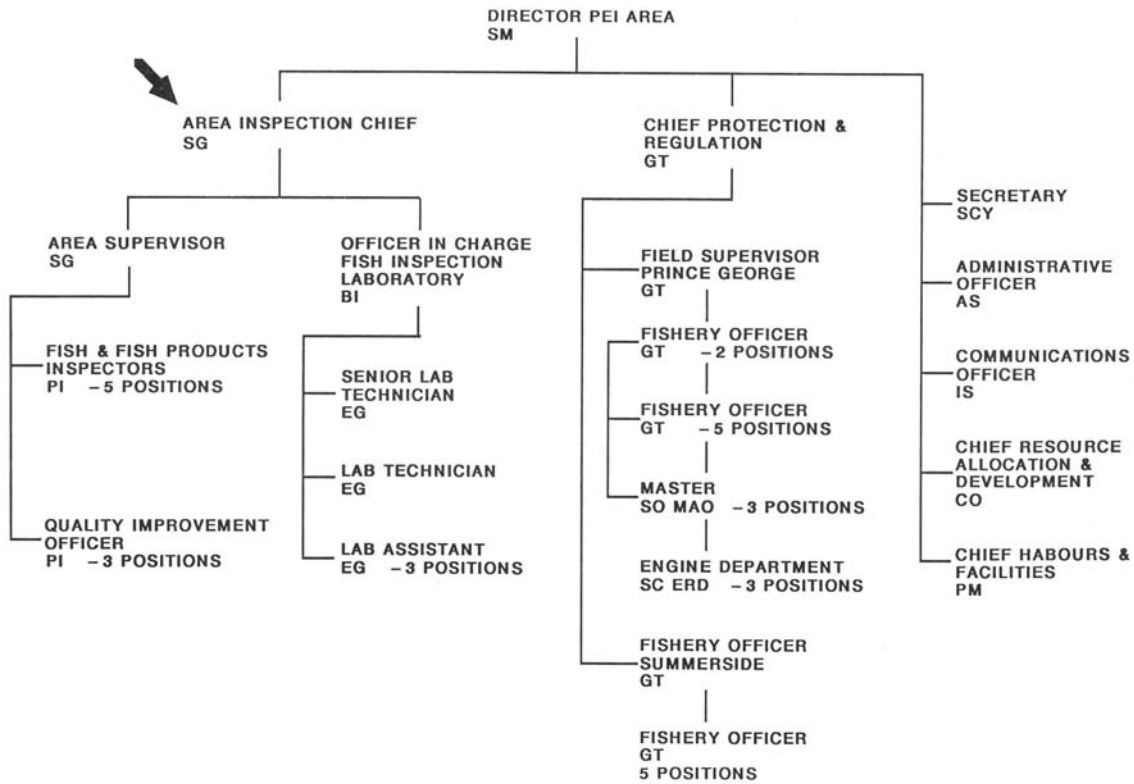
3 / 83

The work requires resolving problems between area supervisors and industry representatives relating to interpretations of regulations, policies and standards.

Operational Responsibility

3 / 105

Responsibility is for the planning and implementation of a fish inspection program for the Prince Edward Island area, including the establishment of priorities and goals, the allocation of resources and the development and modification of operating procedures. This responsibility is exercised through subordinate supervisors.



6.3

Scientific Regulation
Sub-group: Scientific Regulation
B.M.P.D. No. 6

PRINCE EDWARD ISLAND AREA - INSPECTION

BM 6

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 7

Level: 5

Descriptive Title: Operations and Compliance Officer

Point Rating: 591

Reporting to the Chief:

Plans and controls specified national compliance and data gathering programs including inspection, investigation, analytical and enforcement activities in one of the areas of foods, drugs, cosmetics or medical devices . Monitors regional inspection and laboratory outputs and reviews and evaluates enforcement actions. Negotiates interregional laboratory and inspection workloads for compliance and data gathering programs. Identifies program-related training needs. Studies contentious issues in consultation with Legal Services and recommends solutions. Interprets departmental guidelines and procedures to staff, industry and other agencies, particularly in areas of ambiguous jurisdiction. Initiates and drafts new or revised operational and compliance policies, guidelines and procedures.

Develops and plans responses to national emergencies and crises as National Recall Coordinator. Co-ordinates strategies, activities and communications between headquarters, the field and various domestic and foreign agencies. Negotiates the degree of involvement and work effort of other federal departments and other agencies such as national trade associations. Briefs senior management on health hazard situations. Assesses the results of health hazard-related investigations. Analyzes and evaluates the performance of emergency responses. Identifies deficiencies, recommends changes to national emergency systems for investigation and recall, to regulations to facilitate recalls and to methods by which recurrence of a particular emergency could be prevented.

Develops the annual directorate work plan in assigned area. Evaluates regional analytical and inspection capability. Assesses trends in technology, production, marketing and quality control in industry. Develops manuals, new or modified procedures and specifications for field activities. Audits the quality of inspection and enforcement activities. Develops annual projects and negotiates regional participation. Monitors, reviews and evaluates regional performance against targets and recommends strategy to correct deviations.

Examines industry trends and practices, legal opinions, court rulings, interpretations and legislation. Recommends regulatory changes to correct legislative deficiencies. Assesses the feasibility and impact of regulatory proposals on the field programs.

Advises Directorate management on new trends and technologies affecting programs. Informs and educates industry and other interested parties on operational and compliance programs.

Specifications	Degree/ Points
Skill and Knowledge	4 / 191

The work requires knowledge of the technology, production, marketing and quality control in a regulated industry, for example foods, drugs, cosmetics or medical devices. Knowledge of the Food and Drugs Act and Regulations, related legislation, legal precedents, operational policies and procedures and data gathering and compliance programs is required. The work requires the skill to coordinate national investigations and responses to emergencies including negotiation with other government departments and industry associations. Skill is also required to analyze and evaluate compliance program outputs from all regions.

Decision Making

C2 / 223

Initiative and judgment are required to evaluate and monitor specified national compliance programs and to develop product recall systems. Judgment is required to negotiate work sharing agreements with other federal departments, to develop the annual operational plan and to interpret policy. Problems concerning standards of performance, legislative change and overlapping jurisdiction are solved within the objectives of the program. The implications of decisions on new plans for program achievement may be difficult to determine. New operational and compliance policies are recommended.

Decisions affect the industry, consumers, other enforcement agencies and staff nationally within a specialty area. Errors could result in poor public image, poor cooperation by the regulated industry, inadequate national product recall activities or inadequate work sharing agreements with other federal agencies. The position reports to a supervisor at the senior level.

Contacts

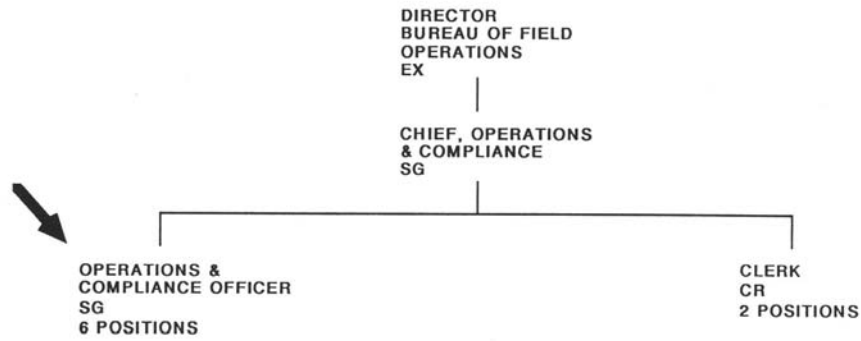
4 / 117

The work requires soliciting the support and active participation of other government departments and national trade associations in specified national compliance and data gathering programs and national emergency response plans.

Operational Responsibility

2 / 60

Responsibility is for the continuing development of operational procedures including those related to national compliance and data gathering programs and national emergencies (recalls).



HEALTH PROTECTION BRANCH

7.3

Scientific Regulation
Sub-group: Scientific Regulation
B.M.P.D. No. 7

BM 7

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 8

Level: 6

Descriptive Title: Officer, Food Inspection
Policy and Audit

Point Rating: 751

Reporting to the Chief:

Furtheres the achievement of a national program for the regulation and inspection of the food industry to ensure the health and safety of Canadian food consumers. Researches food legislation and analyzes interfaces and overlaps. Documents food inspection programs of National Health and Welfare, Fisheries and Oceans Canada, Agriculture Canada, Consumer and Corporate Affairs Canada and provincial governments. Develops mechanisms to eliminate inconsistencies and duplications in food inspection programs. Solicits the support and participation of regulatory agencies and drafts memoranda of understanding defining contributions by regulatory agencies to the national food inspection program.

Develops, manages and evaluates the national food establishment inspection audit program to ensure uniform inspection of the 4000 establishments registered with Agriculture or Fisheries and Oceans and the 7500 establishments regulated for health, safety and nutrition solely by National Health and Welfare. Develops guidelines for the types and frequencies of on-site audit inspections, processes for paper audits of inspection documentation and procedures for EDP-based interdepartmental food inspection data audits. Negotiates the adoption of uniform food inspection procedures by regulatory agencies. Monitors the audit performance of participating departments. Develops and coordinates the training of inspectors in participating departments and of NIIW regional audit inspectors. Reviews proposed policies to ensure feasibility and to ascertain impact on long-term resource requirements. Identifies qualitative and quantitative program performance indicators. Advises senior management on program forecast needs.

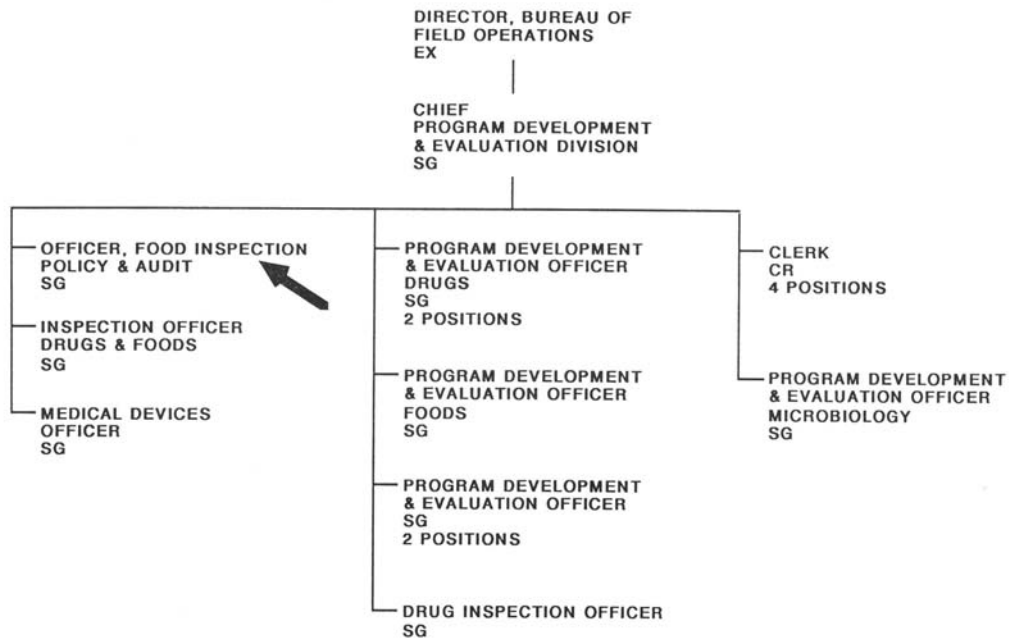
Defines national data gathering, compliance and service programs for the domestic and import food industry. Evaluates project output for the previous three years. Evaluates unusual problems and recommends strategies for correction. Assesses compliance of the regulated industry. Chairs the Field Operations Directorate Technical Committee on domestic food industry compliance. Writes inspection and laboratory project specifications, including measurement criteria for compliance promotion programs. Negotiates methodology, standards or guidelines with the Bureau of Microbial Hazards.

Liaises with officials of other government departments and agencies to promote uniform regulations and methods of analysis. Represents the Field Operations Directorate in the interdepartmental advisory groups on food inspection. Contributes to the elaboration of international codes of hygienic practice.

Designs processes to evaluate compliance, data gathering, information gathering and service projects. Analyzes procedures and strategies followed by similar agencies such as the US Food and Drug Administration or international agencies such as the Codex Alimentarius Commission. Consults with trade associations, professional associations and other interested groups.

Advises on food microbiology, particularly in the area of food processing technology and plant sanitation practices. Prepares ministerial briefings, correspondence and speeches.

Specifications	Degree/ Points
Skill and Knowledge The work requires knowledge of the food industry in Canada and food microbiology particularly in the area of food processing technology and plant sanitation practices. Knowledge of the Food and Drugs Act and Regulations, related legislation, departmental operational policies and procedures and the food inspection programs of other government departments and international agencies is required. The work requires the skill to develop, negotiate and manage an interdepartmental audit program to ensure uniform inspection practices. Skill is also required to monitor the directorate's performance against the operational plan and chair technical committees.	5 / 243
Decision Making Initiative and judgment are required to plan and develop the interdepartmental food inspection audit activities. Judgment is required to evaluate and assess reports and proposals submitted by food inspection agencies and the resource impact of policy proposals. Problems affecting the achievement of a national program for the regulation and inspection of the food industry are solved by devising new courses of action within the intent of objectives, for example, national uniformity in inspection procedures. The implications of alternate courses of action on interdepartmental interface and overlaps are often difficult to determine. Strategies for the development of a national and interdepartmental food inspection audit program are proposed. Decisions affect the industry, consumers, other federal departments and staff nationally. Errors could result in poor government image, poor cooperation from the regulated industries and other government departments, an inadequate national food establishment inspection audit program or inappropriate departmental policy orientation. The position reports to a supervisor at the senior level.	D2 / 286
Contacts The work requires soliciting the support and active participation of other government departments in the achievement of a national program for the regulation and inspection of the food industry and for the inspection audit program.	4 / 117
Operational Responsibility Responsibility for the development and evaluation of the national food establishment inspection audit program, administered by own and other government departments.	3 / 105

HEALTH PROTECTION BRANCH

8.3

Sub-group: Scientific Regulation
B.M.P.D. No. 8

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 9

Level: 6

Descriptive Title: Chief, Food Inspection Division

Point Rating: 721

Reporting to the Director:

Plans and implements a comprehensive inspection, investigation and compliance program for Western Region (British Columbia, Alberta, Yukon and the Western part of the Northwest Territories) to protect the public from health hazards associated with foods. Assesses the status of the region's food industry in terms of compliance and new technologies. Evaluates concerns identified by consumers, professional associations and the industry. Analyses regional performance.

Develops, with the National Food Program Planning Committee, short- and long-range strategies and performance measurement criteria for compliance activities. Assesses regional resource requirements. Negotiates laboratory support with the Chief, Laboratories Division, Western Region. On behalf of the Regional Director, negotiates with the Director, Bureau of Field Operations for the region's food inspection program. Evaluates program and resource allocation proposals recommended by district supervisors. Establishes goals and priorities for districts.

On behalf of the Regional Director, negotiates work sharing agreements with senior officials of the Governments of British Columbia and Alberta, to facilitate cooperative work efforts, to authorize the payment of expenses incurred in the procurement of samples by their staff and to exchange inspection and laboratory data. Negotiates similar work sharing agreements with Agriculture Canada and Fisheries and Oceans.

Writes the Division's operational work plan and contingency plan. Recommends good manufacturing practice guidelines and amendments to legislation. Directs and evaluates the regional food inspection, investigation, enforcement and other compliance promotion activities. Develops standards of performance. Tracks, audits and evaluates achievements against plans and corrects deviations. Directs the Branch education programs addressed to the food industry, to officials of other government departments and to staff of NHW. Manages the response to emergencies within the region by re-assigning resources and ensuring effective communication with concerned parties.

Resolves more serious disputes between senior management in industry and District Supervisors. Makes major enforcement decisions which have serious socio-economic impact. Presides over hearings involving national or multinational companies operating in the region and recommends prosecution as appropriate.

Works cooperatively with senior officials in own and other departments, other levels of governments, foreign governments, educational institutions, industries, consumer organizations and professional associations.

Manages the Food Inspection Division including person-years and salary, operating and capital funds. Defines the organization and the responsibilities of staff. Selects, trains, advises and appraises staff. Administers the collective agreements applying to several occupational groups and resolves problems related to work performance and discipline. Represents the Branch in the grievance procedure and at Union-Management Consultative meetings.

Specifications

Skill and Knowledge

5 / 243

The work requires knowledge of the food industry in the Western Region. Knowledge of the Food and Drugs Act and Regulations, related legislation, legal precedents and operational and administrative policies and procedures is required. The work requires the skill to manage the regional food inspection program, negotiate work sharing agreements with other government departments and resolve more serious disputes between industry senior management and regional staff. The work requires skill to develop national strategies and performance measurement criteria for compliance activities within the framework of the National Food Program Planning Committee.

Decision Making

C2 / 223

Initiative and judgment are required to plan and implement the inspection, investigation and compliance program in the Western Region. Judgment is required to preside over hearings involving multinational companies and to resolve more serious disputes between senior management in industry and district supervisors. Problems regarding the negotiation of laboratory support and intergovernmental work sharing agreements are solved within the objectives of the program. The implications of decisions on the operational work plan, contingency plan and disputes may be difficult to determine.

Decisions affect the regional food inspection program, the industry, consumers and other government departments. Errors could result in poor public image, poor cooperation by the regulated industry, poor intergovernmental cooperation or inappropriate commitment of financial and human resources. The position reports to a supervisor at the senior level.

Contacts

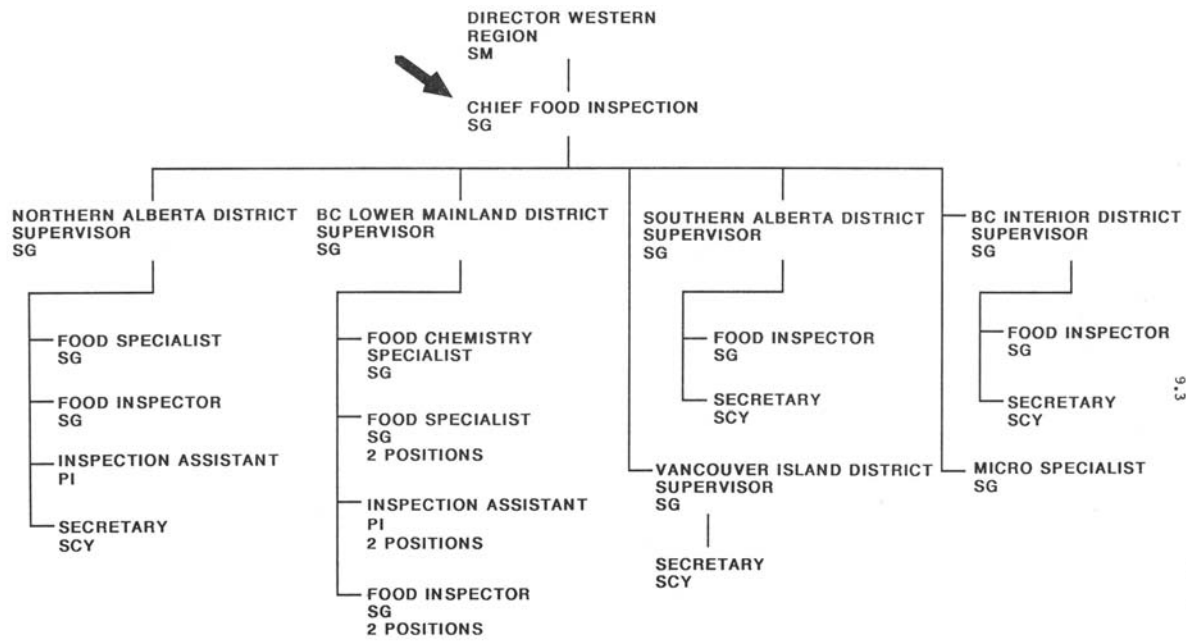
5 / 150

The work requires representing the department in negotiating work sharing agreements with other government departments for the achievement of the food inspection, investigation and compliance program in Western Region.

Operational Responsibility

3 / 105

Responsibility is for the planning and implementation of a comprehensive food inspection program for the Western Region, including the establishment of priorities and goals, the allocation of resources and the development and modification of operating procedures. This responsibility is exercised through subordinate supervisors.



HEALTH PROTECTION BRANCH

9.3

Scientific Regulation
Sub-group: Scientific Regulation
B.M.P.D. No. 9

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 10

Level: 7

Descriptive Title: Chief, Program Development
and Evaluation

Point Rating: 945

Reporting to the Director:

Directs the evaluation of national laboratory, inspection, investigation and enforcement programs related to foods, drugs, cosmetics and medical devices. Identifies data requirements which indicate goal achievement, develops evaluation parameters and designs and maintains project evaluation management systems. Evaluates the progress of the program and the compliance status of regulated industries. Recommends resource allocation to meet program requirements.

Directs the development of compliance project objectives and goals. Negotiates and designs data gathering and service projects. Identifies Directorate goals on a 2-5 year basis. Describes compliance criteria for 1-2 year programs. Assesses technological and legal trends to permit the development of field capabilities.

Identifies the quality criteria used to evaluate data gathering and other service projects. Evaluates broad program accomplishment in relation to program forecast and departmental objectives. Modifies planning and management tracking systems such as work plans, management information systems and performance measurement systems to improve their usefulness.

Develops quality control and review programs to ensure the reliability and uniformity of inspection and analytical data across Canada. Defines analytical and inspection quality control objectives for all regions. Identifies the need for effectiveness studies in laboratory and inspection activities and identifies work quality objectives for regional laboratory operations. Evaluates regional program performance and recommends corrective action.

Assesses the impact of proposed policy changes on field operations. Reviews and analyzes Directorate operational plans to ensure their feasibility. Contributes to the development of the program forecast by identifying the resource requirements of field programs.

Works with officials in other departments and agencies such as Consumer and Corporate Affairs, Fisheries and Oceans, Agriculture Canada and provincial governments, and with foreign agencies to coordinate national and international field programs.

Manages the Program Development and Evaluation Division including person-years and salary and operating funds. Selects, trains, advises and appraises staff.

Prepares ministerial briefings, correspondence and speeches. Promotes departmental programs and policies to the regulated industry.

Specifications

Degree/
Points

Skill and Knowledge

6 / 295

The work requires knowledge of the food, drug, cosmetics and medical device industries in Canada and internationally. Knowledge of the Food and Drugs Act and Regulations, related legislation and departmental operational and administrative policies and procedures is

required. The work requires knowledge of evaluation and data requirements related to field compliance programs and government policy related to regulatory programs. The work requires the skill to manage the program of the Program Development and Evaluation Division, to develop quality control and review for directorate activities, to assess the impact of proposed policy changes in field operations and to develop Directorate operational plans.

Decision Making

D3 / 350

Initiative and judgment are required to plan and direct the evaluation of national laboratory, inspection, investigation and enforcement programs. Judgment is required to assess the impact of proposed policy changes on field operations, to evaluate broad program accomplishment and to define Directorate goals on a 2-5 year basis. Problems affecting the achievement of the national field program are solved by devising new courses of action within the intent of objectives, for example, the development of performance measurement systems. The implications of alternate courses of action on the long-range planning of Directorate programs are often difficult to determine. Changes to the Field Operations program are proposed.

Decisions affect the national field program, the industry and consumers. Errors could result in poor public image, poor international cooperation or inadequate program achievement. The position reports to a supervisor at the senior level.

Contacts

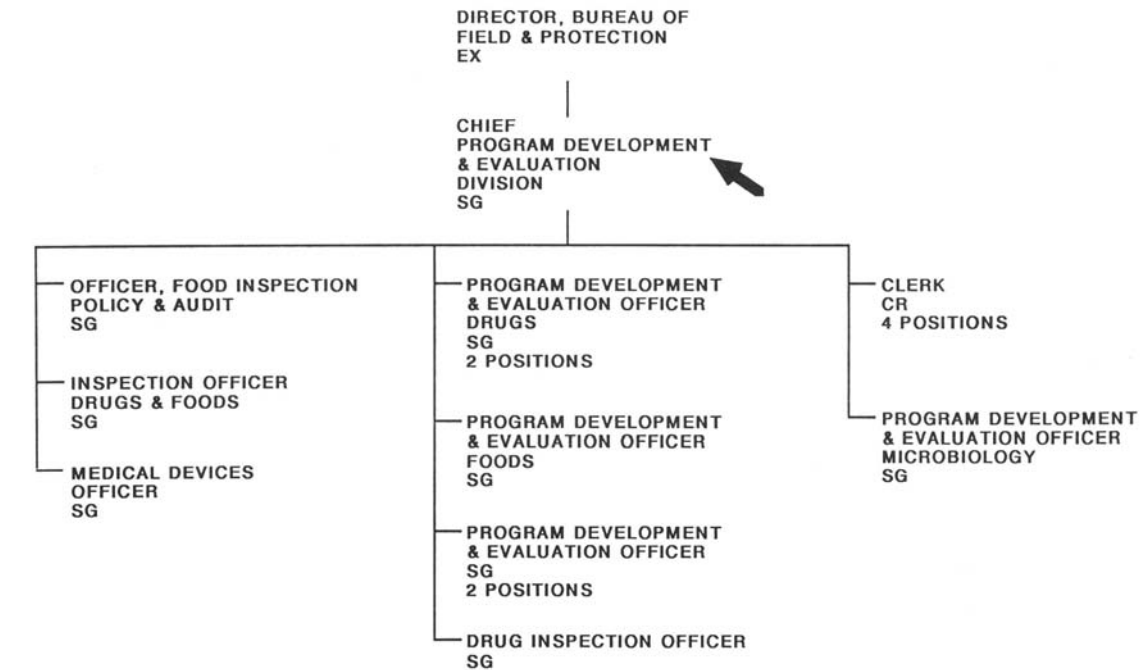
5 / 150

The work requires representing the department in negotiations with other government departments and agencies for the resolution of problems in national field compliance programs for foods, drugs, cosmetics and medical devices.

Operational Responsibility

4 / 150

Responsibility is for the development of national policies for laboratory, inspection, investigation and enforcement programs related to foods, drugs, cosmetics and medical devices.

HEALTH PROTECTION BRANCH

10.3

Sub-group: Scientific Regulation
B.M.P.D. No. 10

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 11

Level: 4

Descriptive Title: Patent Examiner

Point Rating: 416

Reporting to the Section Head:

Examines applications for patents in an assigned technological field to determine if a patent is to be granted or if an amendment of the application is necessary. Studies the petition, the disclosure, associated drawings and title. Assesses the usefulness of the invention, the accuracy, conciseness and specificity of the title and the legal sufficiency of the subordinate features. Evaluates the technical correctness of the invention and whether it is within the field of statutory inventions. Determines if the patent specifications meet the requirements for division, reissue, security and atomic energy. Analyses claims defining exclusive property and the protection to be afforded the eventual patentee. Determines if there are other applications claiming or describing the same invention, if the invention claimed is not shown or taught in the prior art, if it is a workshop improvement or a patentable advance in the art. Ensures that changes affected by petitions of reissue can be allowed and that amendments to applications are acceptable. The granting of a patent provides for a 17 year monopoly.

Examines amended applications in an assigned technological field, to decide if a patent is to be granted or refused, if a further amendment is required, or if a recommendation to the Patent Appeal Board for continuing rejection of the application is necessary. Discusses findings with applicants or their legal representatives. Determines if amended disclosures contain new matter, and if this matter may be properly added, must be refused or requires a supplementary disclosure. Evaluates amendments and arguments advanced by applicants. Ensures amendments do not conflict with other inventions. Assesses the need for revision to the classification of the application. Ensures that the invention is an advance over prior art, that the claims are unambiguous and supported by disclosures. Studies those applications cited in the amendment.

Conducts conflict procedures, in the assigned technological field to determine the priority of two or more applications or claims for the same invention. Determines which applications are in conflict. Following the receipt of at least two applications contesting conflict claims, or conflicting subject matter, assesses and reports on the extent of conflict. Evaluates applicants' arguments including reference to prior art and other applications. Assesses the patentability of conflict claims. Writes technical-legal reports on examination decisions.

Responds to routine requests for patent information. Researches responses to more complex inquiries. Attends trade shows and provides information on the functions and services of the Patent Office under the guidance of a Senior Officer. Prepares speeches and papers and studies scientific literature and court decisions. Explains requirements for patent applications to patent agents. Visits research and manufacturing establishments.

Specifications	Degree/ Points
Skill and Knowledge	4 / 191

The work requires knowledge of scientific theories, principles, technology, trends and advances associated with an assigned field such as micro-electronics or bio-technology. Knowledge is required of the Canadian Patent Act and practices, Commissioner's decisions, jurisprudence, the Canadian classification system, the patent practices and legislation

of other countries and the Public Service Inventions, Interpretation, Trademark and Industrial Design Acts. The work requires the skill to assess the novelty of claims, to determine the appropriate scope of the invention, to advise applicants on the appropriateness of their applications and to write technical legal evaluations.

Decision Making

Cl / 161

Initiative and judgment are required to organize and schedule searches of prior art, and to recognize the novelty of the technology worldwide. Judgment is required to evaluate petitions, disclosures, claims, sketches, models and drawings and to make technical and legal assessments of the degree and significance of inventions related to an assigned technological field. Problems concerning amended applications and conflicting claims are solved within the objectives of the program. The implications of decisions on final actions may be difficult to determine.

Decisions affect the program delivery for the assigned technological field served by the position. Errors could result in the granting of invalid or improper patents, financial gain or loss to inventors, lawsuits between applicants or complaints to the department. The position reports to a supervisor at the intermediate level.

Contacts

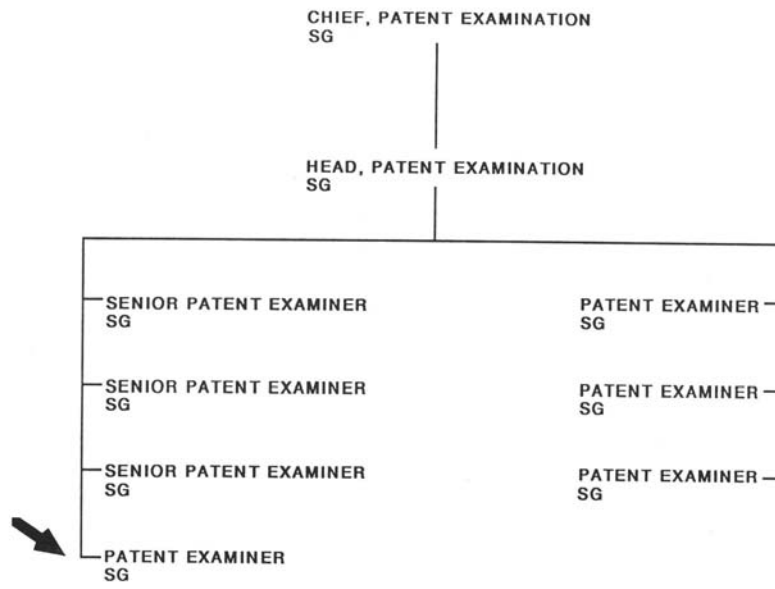
2 / 49

The work requires obtaining information and cooperation from patent applicants and their legal representatives in order to explain why and how applications have to be amended before prosecution can proceed.

Operational Responsibility

1 / 15

Responsibility is for own work.



11.3

Scientific Regulation
Sub-group: Patent Examination
B.M.P.D. No. 11

BM 11

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 12

Level: 5

Descriptive Title: Senior Technological Information Officer

Point Rating: 502

Reporting to the Section Head:

Advises and informs Canadian industry, patent professionals, entrepreneurs, students and academics on patents and the technology contained in patents in order to encourage innovation and investment to promote industrial development in Canada. Researches the state of the art in a particular field of technology. Writes papers and articles for publication in trade journals and periodicals. Advises other government departments and agencies on the state of the art in a particular field of technology including projects subject to research and development funding. Presents seminars and explains the organization and services of the Patent Office and outlines the uses of technological information at trade shows and other fora. Works effectively with patent professionals, representatives of business and industry and with colleagues of other government departments. Counsels clients on the design and formulation of state of the art search requests. Advises patent professionals on the conduct of searches related to infringement. Responds to requests for patent information.

Classifies patent applications for inventions in a broad field of technology such as mechanics, chemistry, or electricity and electronics. Studies the narrative description (disclosure) and drawings of each application. Identifies the nature and utility of the invention, the technological problem to which it teaches a solution and the improvement it makes over prior inventions. Identifies and analyses the novel features of the invention in which the applicant claims exclusive patent rights. Determines which class and subclass contain the kind of subject matter most similar to the claimed novel features of the invention by applying the principles and procedures of Patent Classification and using the Class Schedules, Class and Subclass Definitions and Subject Matter Index. Refers applications to the Atomic Energy Control Board or to the Department of National Defence as appropriate before examination. Determines the class and subclass notation for applications, classifies according to the Canadian Classification System, the International Patent Classification and the Standard Industrial Classification and refers them to Patent Examiners. Makes final decisions on classification problems referred by officers of the Patent Examination Branch and the Technology Assessment and Forecast Section.

Reviews the organization or classification of classes and subclasses of patents, the subject matter index and patent applications in a broad field of technology and develops new classifications for classes and subclasses where the existing ones have become outdated or poorly adapted to recent inventions. Documents all the patents and patent applications which could be included in the new class or subclass. Studies information processing, particularly the application of computer technology to patent storage and search problems and requirements and recommends improvements. Researches the classification of a class, identifies its deficiencies and related examination problems. Consults with Patent Examiners working in the class. Reviews text books, journals and periodicals to identify the technology and the scientific basis of the subject class, the line of technological development pursued, and the technical problems in the class. Clarifies the nature and scope of the subject matter of each subclass with detailed definitions and cross-search notes to other classes and subclasses with related subject matter.

Tutors others in the practices and principles of patent classification and resolves problems related to the recommendations of others.

Attends trade shows, provides information and monitors interviews conducted by employees. Studies scientific literature and court decisions. Explains requirements for patent searching to patent agents. Visits research and manufacturing establishments.

Specifications Degree/
Points

Skill and Knowledge 5 / 243

The work requires knowledge of scientific theories, principles, technology, worldwide trends and advances associated with a broad field of technology such as mechanics, chemistry, electricity and electronics. Knowledge is required of the Canadian classification system, the American Patent Classification System, International Patent Classification system, the Standard Industrial Classification system, the Canadian Patent Act, operational and administrative policies and procedures and information processing for patent storage and access. The work requires the skill to advise and inform the industry, other government departments, patent professionals and inventors on technology transfer and search approaches, to conduct state of the art searches, to assess, amend and develop new classes and to assess the nature of the claim for classification. Skill is also required to train others.

Decision Making Cl / 161

Initiative and judgment are required to classify and cross reference patent applications for inventions and to develop new classifications for classes and subclasses. Problems concerning final decisions on classifications referred by others and on the application of computer technology to patent storage and search requirements are solved within the objectives of the program. The implications of decisions on new classes and subclasses of patents and their description may be difficult to determine.

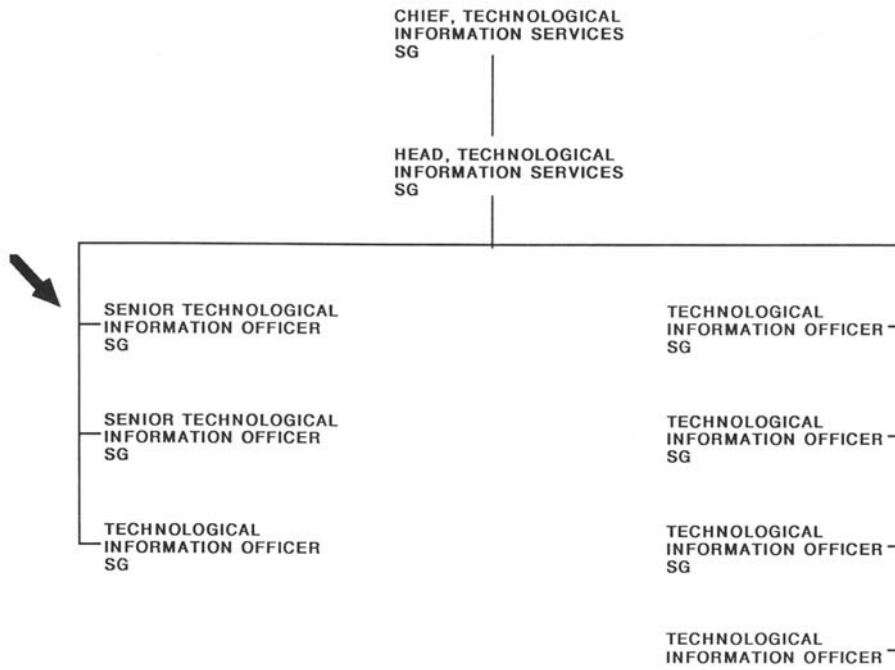
Decisions affect the program delivery for the broad field of technology served by the position. Errors could result in the inadequate classification of patent applications, the inappropriate organization or classification of classes, lawsuits or complaints to the department. The position reports to a supervisor at the intermediate level.

Contacts 3 / 83

The work requires resolving problems between intermediaries such as representatives of provincial research organizations and Canadian manufacturers or inventors related to state of the art search requests.

Operational Responsibility 1 / 15

Responsibility is primarily for own work although guidance to other staff may be provided.



BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 13

Level: 6

Descriptive Title: Head, Patent Examination

Point Rating: 695

Reporting to the Chief:

Manages a Section involved in the provision of technical information and advisory services to industry and federal and provincial departments and agencies, and in the examination and approval of patents and patent applications. Analyses workload forecasts, priorities and staff capability and determines the goals and objectives. Evaluates problems experienced in patent examination and information and advisory service activities and develops work plans. Establishes and maintains quality and production standards. Identifies staff training needs and devises training programs. Based on the technical specialty involved and workload, assigns state of the art searches. Reviews difficult/sensitive patent examination problems. Advises staff. Approves or rejects recommendations for the resolution of difficult/sensitive conflict cases. Resolves differences between Patent Examination Officers and patent agents or clients.

Advises and informs Canadian industry, patent professionals, entrepreneurs, students and academics on patents and on technology contained in patents in order to encourage innovation and investment to promote industrial development in Canada. Researches the state of the art in a particular field of technology and the patentability of a product or process. Writes papers and articles for publication in trade journals and periodicals. Advises other government departments and agencies on the state of the art in a particular field of technology including projects subject to research and development funding. Presents seminars and explains the organization and services of the Patent Office and outlines the uses of technological information at trade shows and other for a Works effectively with patent professionals, representatives of business and industry and with colleagues of other government departments.

Examines applications for patents in a technological field to determine if a patent is to be granted, if an amendment of the application is necessary and to resolve contentious or difficult cases referred by subordinates. Studies the petition, the disclosure and associated drawings and title. Assesses the usefulness of the invention, the accuracy, conciseness and specificity of the title and legal sufficiency of the subordinate features. Evaluates technical correctness of the invention and whether it is within the field of statutory inventions. Determines if the patent specifications meet the requirement for division, reissue, security and atomic energy. Analyses claims defining exclusive property and the protection to be afforded the eventual patentees. Determines if there are other applications claiming or describing the same invention, if the invention claimed is not shown or taught in the prior art, if it is a workshop improvement or a patentable advance in the art. Ensures that changes affected by petitions of reissue can be allowed and that amendments to applications are acceptable.

As a technical expert within a particular field of technology, advises staff. Studies general scientific and engineering papers and publications in one or more areas of technology. Reviews current legislation, regulations, policies, directives and Canadian and Foreign jurisprudence. Evaluates the legal criteria for sufficiency of applications for patent and reissue. Attends scientific and engineering conferences and trade shows. Advises patent examiners on especially complicated cases and particularly difficult problems. Informs the Chief of developments in the particular field specialty. Instructs and guides patent examination officers on patent examination principles and practices. Acts as the intellectual property expert in national and regional seminars. Develops, with members of the World Intellectual Property Organization, agreements for the patentability of different subject matters.

Scientific Regulation

Sub-group: Patent Examination

B.M.P.D. No. 13

13.2

Manages the Section including person-years. Defines the organization and the responsibilities of staff. Selects, advises and appraises staff. Administers the collective agreements and resolves problems related to work performance and discipline. Represents the Branch in the grievance procedure.

Contributes to the management and planning functions of the Division.

Specifications

Degree/
Points

Skill and Knowledge

6 / 295

The work requires knowledge of scientific theories, principles, technology and worldwide trends and advances associated with the fields of prior art assigned to the section. Knowledge is required of the Canadian Patent Act, and practices, including Commissioner's decisions and jurisprudence of other countries, the Canadian Classification system, the International Patent Classification system, operational and administrative policies and procedures and the Public Service Inventions, Interpretation, Trademarks and Industrial Design Act. The work requires skill to manage the section, to advise and inform the industry and other government departments on technology transfer, to resolve contentious and difficult patent cases, to evaluate and influence national patent policy and legislation and to identify deficiencies such as patentability of different subject matters leading to the development of agreements.

Decision Making

C2 / 223

Initiative and judgment are required to organize and schedule the work of the section. Judgment is required to evaluate and monitor program activities, to develop annual operational plans, to advise Canadian industry and other government departments, to assess reports, allowances, withdrawals from allowance, amendments after rejection of allowance of previously allowed claims, reissue and divisional applications throughout the section. Problems concerning conflict reports and award recommendations after conflict proceedings and final actions are solved within the objectives of the program. The implications of these decisions and decisions on the operational work plan may be difficult to determine.

Decisions affect the rights of inventors and Canadian manufacturers concerned with products and processes within a particular field of technology and the section's patent examination program. Errors could result in financial loss or gain to inventors, legal proceedings in the Exchequer and Supreme Courts and provincial courts, complaints to the Commissioner of Patents, inadequate work production by staff or inappropriate commitment of human resources. The position reports to a supervisor at the senior level.

Contacts

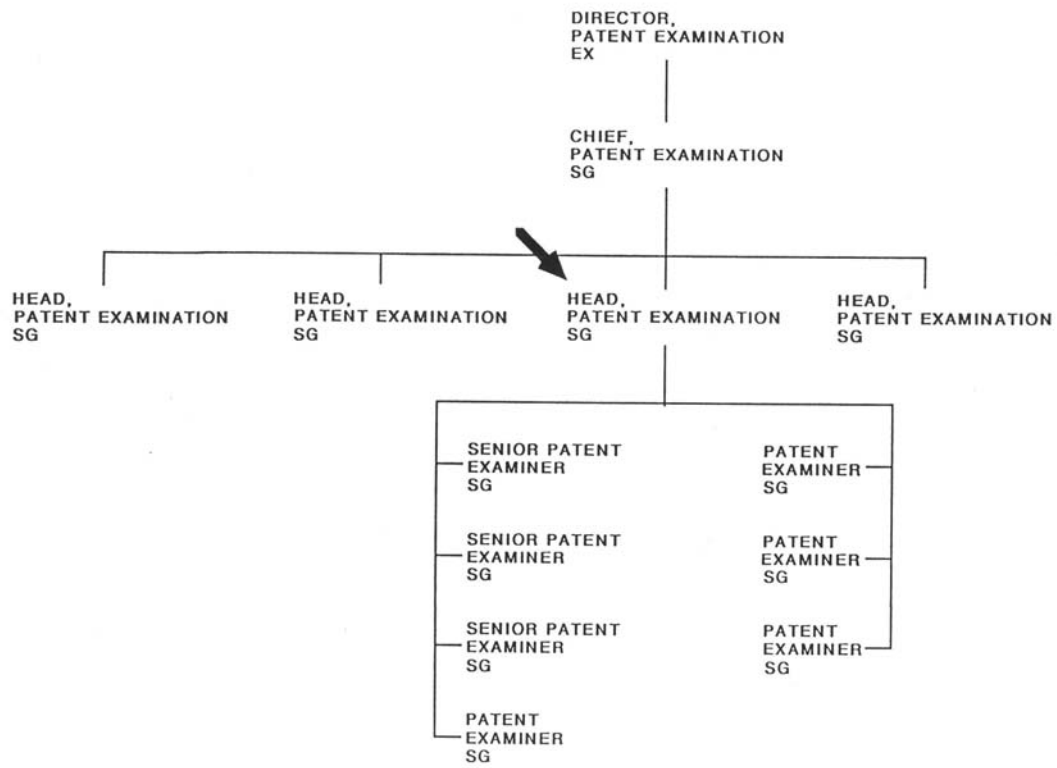
4 / 117

The work requires soliciting the support and active participation of other patent offices in the development of agreements for the patentability of different subject matters such as bio-technology or computer software.

Operational Responsibility

2 / 60

Responsibility is for the planning and assignment of work for Patent Examiners in the Section, review of their performance and provision of guidance for improvements.



13.3

Scientific Regulation
Sub-group: Patent Examination
R.M.P.O. No. 13

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 14

Level: 8

Descriptive Title: Chief, Patent Examination

Point Rating: 1,000

Reporting to the Director, Patent Examination Branch:

Plans, organizes and directs a patent information and advisory service for industry, research organizations, innovation centers and federal and provincial departments and agencies. Evaluates the strategic objectives of the Patent Office, the opportunities and constraints of the "mission" and workload forecasts and establishes divisional goals and objectives. Evaluates program and resource allocation proposals recommended by Section Heads. Defines the human, materiel and financial resource requirements for the Division.

Monitors the quality of work. Tracks, audits and evaluates achievements against plans and corrects deviations. Systematically evaluates the effectiveness of the patent information service in terms of the usefulness of the information and advice to companies and other government departments and agencies, and its impact on their operations, projects and programs. Assesses the innovative capacities and technological sophistication of manufacturing industries and industrial research and development organizations in Canada, as well as the program content of industrial development assistance programs of government departments and agencies. Forecasts the service demands generated by these organizations for technological information and advice.

Directs the delivery of the patent examination program of the Division. Develops and modifies systems to improve the efficiency and effectiveness of the patent examination function. Directs the identification, analysis and definition of specific patent examination problems. Initiates and defines projects to rectify problem areas. Discusses common program problems with Directors of foreign patent offices such as harmonization of patent practices including grace periods, priorities.

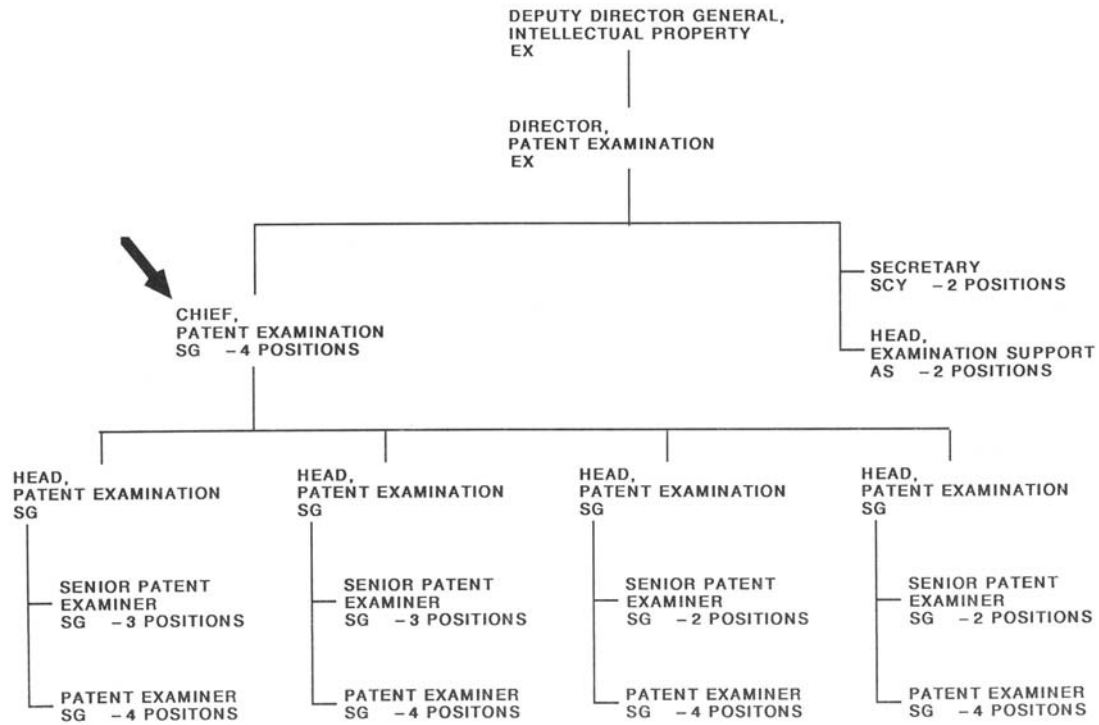
Negotiates on behalf of the Director, work sharing or bilateral agreements for joint development projects with other national patent offices for example the US Patent Office. Works cooperatively with patent applicants and their representatives, and senior management of the manufacturing industry in order to identify and resolve problems in the patent examination process.

Acts as an examining member of the Patent Agent Examination Board. Represents the Directorate at meetings and conventions with the Patent profession. Negotiates, mutually acceptable solutions to problems, with representatives of the Patent and Trademark Institute of Canada at Joint Liaison Committee meetings.

Manages a Patent Examination Division including person-years and salary and operating funds. Selects, trains, advises and appraises staff.

Directs special projects related to the Technological Information Service. Prepares ministerial briefings and speeches.

	Degree/ Points
Specifications	
Skill and Knowledge	7 / 350
The work requires knowledge of scientific theories, principles and technology in the fields of prior art assigned to the division. Knowledge is required of the Canadian Patent Act, and practices, including Commissioner's decisions and jurisprudence, the patent law, practices and jurisprudence of other countries, Canadian and international classification systems and operational and administrative policies and procedures. The work requires skill to manage the program, to develop quality control and review activities, to develop and modify systems for improvement of the patent examination function, to negotiate bilateral agreements for joint development projects with other national patent offices, and solutions to procedural and legislative problems with the Patent and Trademark Institute of Canada. Skill is also required to propose national patent policy and legislation and to develop operational plans.	
Decision Making	D3 / 350
Initiative and judgment are required to plan and direct a national Patent Examination program. Judgment is required to evaluate recommendations for the continuing rejection of applications and for awards in conflict cases; and to assess the validity of proposed changes to patent practices, regulations and legislation. Problems affecting the achievement of the national Patent Examination program are solved by devising new courses of action within the intent of objectives, for example, the development of systems to improve the efficiency and effectiveness of the patent examination function. The implications of alternate courses of action for joint development projects with other national patent offices and the resolution of mutual problems with the Patent and Trademark Institute of Canada are often difficult to determine. Changes to the Patent Examination program are proposed. Decisions affect the national patent examination program, the provision of technological information to Canadians, the rights of Canadian and foreign manufacturers and inventors, the practices used for prosecuting applications for patents and the legislation. Errors could result in poor public image, poor international cooperation, major financial loss or gain to inventors or industry or inadequate program achievement. The position reports to a supervisor at the senior level.	
Contacts	5 / 150
The work requires representing the department in negotiating solutions to procedural and legislative problems with the Patent and Trademark Institute of Canada for the achievement of the national patent examination program.	
Operational Responsibility	4 / 150
Responsibility is for the development of national policies for the patent examination program.	



14.3

Scientific Regulation
Sub-group: Patent Examination
B.M.P.D., No. 14

BENCH-MARK POSITION DESCRIPTION

Bench-mark Position Number: 15

Level: 8

Descriptive Title: Chief, Technological Information
Services

Point Rating: 1,000

Reporting to the Director, Information and Technology Exploitation Branch:

Plans, organizes and directs a technological information and advisory service for industry, research organizations, innovation centers and federal and provincial departments and agencies. Evaluates the strategic objectives of the Patent Office, the opportunities and constraints of the "mission" and workload forecasts and establishes divisional goals and objectives. Evaluates program and resource allocation proposals recommended by Section Heads. Defines the human, materiel and financial resource requirements for the Division.

Monitors the quality of work. Tracks, audits and evaluates achievements against plans and corrects deviations. Systematically evaluates the effectiveness of the technical information service in terms of the usefulness of the information and advice to companies and other government departments, and its impact on their operations, projects and programs. Assesses the innovative capacities and technological sophistication of manufacturing industries and industrial research and development organizations in Canada, as well as the program content of industrial development assistance programs of government departments and agencies. Forecasts the service demands generated by these organizations for technological information and advice.

Directs the classification of patents and applications for patents and develops and modifies systems for the classification, storage and retrieval of world patents to meet the needs of the Technological Information Service, the Patent Examination Branch and the industrial, academic and government users of patent information. Develops and modifies systems to improve the efficiency and effectiveness of the technological information service function. Directs the identification, analysis and definition of specific patent classification, storage and accessing problems. Initiates and defines projects to rectify problem areas. Discusses common problems with Directors of foreign patent offices such as amendments to the International Patent Classification System.

Reviews the field of information processing. Direct studies and evaluations of newly developed commercial data bases in relation to Patent Office search needs. Recommends their purchase or lease.

Negotiates on behalf of the Director, work sharing or bilateral agreements for joint development projects with foreign patent offices and other government departments and agencies. Works cooperatively with major search system users (e.g. patent examiners, patent agents, business and industry) in order to identify and resolve problems in the use and application of search systems.

As a departmental representative, contributes to international programs to promote the transfer of patent information among the world's patent offices and to assist developing countries in acquiring technological information. Delivers papers on patent documentation and search systems at international seminars. Evaluates the costs and benefits of development projects. Recommends new policies and projects to the World Intellectual Property Organization. Contributes to the organization of international development projects and to the identification of common problems with the World Intellectual Property Organization. Votes on behalf of Canada, for resolutions or motions.

Develops and recommends standards related to technical capacity, space, public accessibility and staff training, for the national network of patent documentation and search centres. Establishes procedures and criteria for the evaluation of the effectiveness of individual centres and the network; and for tracking activities and problem resolution. Recommends terms and conditions for contracts or agreements for the provision of documentation, equipment and support services to Network centres. Directs the evaluation of major public libraries, universities and provincial research councils against established standards for their inclusion in the network.

Manages the Technological Information Services Division including person-years and salary and operating funds. Selects, advises and appraises staff.

Directs special projects related to the Technological Information Service. Prepares ministerial briefing and speeches. Promotes departmental programs and policies to the industry.

Specifications

Degree
Points

Skill and Knowledge

7 / 350

The work requires knowledge of scientific theories, principles and technology. Knowledge is required of the Canadian and international classification systems, Standard Industrial Classification system, the Canadian Patent Act and practices, information processing for patent storage and access and operational and administrative policies and procedures.

The work requires skill to manage the program, to develop and modify systems for improvement of the technological information dissemination function and the classification of patents and applications, to provide Canadian expertise in the development of international systems for classification and technology transfer, to negotiate bilateral agreements, nationally and internationally for the exploitation of automated classification systems. Skill is also required to propose national classification policy and legislation and to develop operational plans.

Decision Making

D3 / 350

Initiative and judgment are required to plan and direct the national Technological Information Services program. Judgment is required to evaluate projects designed to resolve specific patent classification, storage and accessing problems and to evaluate newly developed commercial data bases. Problems affecting the achievement of the national Technological Information Services program are solved by devising new courses of action within the intent of objectives, for example, the development of systems to improve the efficiency and effectiveness of the technological information services function. The implications of alternate courses of action for joint development projects with other government departments such as the Science Council of Canada and international programs promoting the transfer of patent information and assisting developing countries in acquiring technological information are often difficult to determine. Changes to the Technological Information Services program are proposed.

Decisions affect the national technological information services program, the standards required for participation in the national network of patent documentation and search centers, policies and projects for the World Intellectual Property Organization and joint patent information development projects. Errors could result in poor public image, poor international cooperation, or inadequate program achievement. The position reports to a supervisor at the senior level.

Contacts

5 / 150

The work requires representing the department in negotiating work sharing agreements with intermediaries such as provincial research organizations for the achievement of the national technological information and advisory program.

Operational Responsibility

4 / 150

Responsibility is for the development of national policies for the technological information services programs.

